PURCHASE ORDER

Purchase Order No. STPL/TCPL/IT-HO/23-24/040 **Date:11/06/2024**

To
TEAM COMPUTERS PVT LTD,
GROUND FLOOR, 116, OXFORD TOWER NO 139, OLD AIRPORT ROAD, KODIHALLI, BANGALORE, Bengaluru Urban, Karnataka, 560008
GST No:29AAACT3478J1ZW
PAN No:AAACT3478J
MSME Details:NA
Ref.No/Date. Quote No: TCPL/CHN/2024/100045 & Date:05/06/2024
Subject: Purchase order for the supply of Sapphire Licence for the Refex corporate office, T.Nagar, Chennai.
Contact Person: MR. SRIRAM
Email of contact person: srirams@teamcomputers.com
Mobile no of contact person: +91-89395 51822

PRICE SCHEDULE

Sl.No	Description Of Work	UOM	Qty	Unit Rate Rs.	Tax Percentage	Tax Amount	TOTAL Amt Rs.
1	ITAM Full Suite (AM,IM,IT-Automation) Annual Subscription) Jun 2024 to Jan 2025	No's	100	334.00	18%	6,012.00	33,400.00
SubTotal							**33,400.00**
Add: GST@18% Extra							**6,012.00**
GrandTotal							**39,412.00**
Amount In Words:	**Thirty-nine thousand four hundred twelve rupees only.**						

Terms and Conditions	
Inco Terms	NA
Delivery Schedule	Within 2 days from the date of Purchase order acceptance.
Mode of Shipment	By Road
Payment Terms	• 100% Payment will be paid against the license upgrade. Seller shall invoice the Buyer for the Order within 1 - 2 days of delivery. Unless otherwise stated in the Order, Buyer will pay all properly invoiced undisputed amounts due to Seller within 1 – 2 days after receipt of such invoice, except for any amounts disputed by Buyer.
Note	I. This is a fixed-price contract and there will be no change in unit rates till 100% of supplies are done. II. License duration period start from June 2024 - Jan 2025.
Annexures	Annexure I: Commercial terms & conditions

ANNEXURE-I

COMMERCIAL TERMS AND CONDITIONS

S.NO.	HEADERS	TERMS AND CONDITIONS
1.	**Parties**	This Purchase Order is issued by **M/s Sherisha Technologies Private Limited** the hereinafter referred as a Buyer/Purchaser/Customer; to **M/s TEAM COMPUTERS PVT LTD** , hereinafter referred as the Seller/Supplier/Service Provider. Both the buyer and seller will be jointly referred as 'parties' This purchase order/work order shall constitute the contract ("order")
2.	**Acceptance of Order**	This Order will be deemed accepted by the seller upon the first of the following to occur: (a) seller making, signing, or delivering to the buyer any letter, form, or other writing or instrument acknowledging acceptance; (b) any performance by seller under the order; or (c) the passage of two (2) days after seller's receipt of the order without written notice to the buyer that seller does not accept. This Order, together with any documents incorporated herein by reference, constitutes the sole and entire agreement of the parties with respect to the Order and supersedes all prior or contemporaneous understandings, agreements, negotiations, representations and warranties, and communications, both written and oral, with respect to the subject matter of the order, unless a separate overriding written contract has been entered into and signed by the parties.
3.	**Delivery**	i) Delivery time is the essence of this order and must be strictly adhered to. Seller shall deliver the Goods at the delivery point (the "Deliver Location"), and on the date(s) specified in this Order (the "Delivery Date"). If no delivery date is specified, Seller shall deliver in full within a reasonable time of receipt of the Order. ii) If the Seller fails to deliver the Goods in full, on the Delivery Date, the Buyer may, at its sole discretion: (a) treat the order as cancelled at any time and recover any loss or damage from the Seller; (b) purchase the goods ordered or any part thereof from other sources on the Seller's account, in which case, the Seller shall be liable to pay the Buyer not only the difference between the price at which such goods have been actually purchased and the price calculated at the rate set out in this order, but also any other loss or damage the Buyer may suffer; Without prejudice to above provision Buyer may accept the late delivery, subject to a deduction in payment of 0.5% of the total order price for every week or part thereof of the delay, towards liquidated damages, subject to maximum deduction of 5% of the order price.
4.	**Documents to be submitted along with dispatch to the Buyer**	• GST invoice Original A document by Fax/Email: Seller will send to Buyer the Invoice and Packing List prior to dispatch.
5.	**Warranty and Guarantee for the Goods**	The seller shall be bound to repair/replace free of cost any materials/goods/assets processed and supplied by him, which become defective due to faulty design, material or workmanship or any other reason within 15 days from the date of the invoice. In all such cases the to and fro freight and insurance charges will be to the seller's account.

S.NO.	HEADERS	TERMS AND CONDITIONS
6.	**Dispute Resolution**	i) In the event of any difference or dispute between the parties occurring from or arising out of this order including any question regarding existence, validity or termination of the contract, Parties shall attempt at resolving the same by mutual agreement within a period of seven days from the date such difference or dispute arises. ii) Any difference or dispute remaining unresolved shall be referred to and finally resolved by arbitration in accordance with the Arbitration and Conciliation Act, 1996 (as amended to date). iii) The Arbitral Tribunal shall comprise of a sole arbitrator to be appointed by the buyer. The arbitration shall be held in Chennai. The language to be used in the arbitration shall be English. iv) This contract is subject to and shall be governed by the laws of India. Courts in Chennai shall have exclusive jurisdiction for any applications/ petitions in relation to the arbitral proceedings.
7.	**Correspondence with Buyer**	All correspondence / transaction with Buyer should mention Buyer's purchase order number and the name of the purchase order issuing department and the concerned person.
8.	**Notices**	All notices, communications, references and complaints issued or made by the Seller/Supplier or the Purchaser, inter se concerning the supplies and the Purchase Order shall be in writing and sent to the above address and on the email address of the designated personnel of the Parties.
9.	**Scanned Copy**	Scanned transmissions (includes signed/unsigned copy received via any electronic or any other communication or hand delivery mode) of this document shall be considered as an original of the document, and shall have the same effect and force as signed hard-copy originals of the document. It shall be binding and legally enforceable.
10.	**Limitation of Liability**	Notwithstanding anything contained in this order, its appendices or orders to the contrary, with respect to any and all claims arising out of the performance or non-performance of obligations under this order or purchase orders, whether arising in contract, tort, warranty, strict liability or otherwise, Seller's liability shall not exceed in the aggregate 100% of the purchase order value.
11.	**Termination/ Cancellation of Order**	i) Buyer may terminate or cancel this Order, in whole or in part, for any reason upon thirty (30) days' prior written notice to Seller. In addition to any remedies provided herein, Buyer may terminate this Order with immediate effect, either before or after acceptance of Goods if the Seller has breached any of the Terms herein. ii) If the Seller becomes insolvent, commences or has commenced by it or against it bankruptcy proceedings, receivership, reorganization or assignment for the benefit of creditors, then the Buyer may terminate this Order. iii) If the Buyer terminates the Order for any reason, Seller's sole and exclusive remedy is payment for the Goods received and accepted by the Buyer prior to the termination. However, such remedy of the Seller is subject to Buyer not raising any deficiency in performance of the obligations of the Seller under this Order.

SPECIAL NOTES (if any):
Site Address: Refex Corporate Building,
C/o Sherisha Technologies Pvt Limited
67, Bazullah Road, Parthasarathi Puram, T. Nagar, Chennai, Tamil Nadu – 600 017

Contact person at the site: Name:Mr.Reginold , Phone: +91-99942 30088,
Email: reginold.j@refex.co.in

Project Manager at the head office: Mr.Mugesh M , Phone:+91-99629 97343 , Email: mugesh.m@refex.co.in

Invoicing address:
Sherisha Technologies Private Limited,
No. 1/171, Old Mahabalipuram Road, Thiruporur, Changalpattu District, Tamil Nadu – 603 110
GSTIN – 33AANCS8003K1Z6

Original invoice to be sent at:
Refex Group of Companies,
67, Bazullah Road, Parthasarathi Puram, T. Nagar, Chennai,
Tamil Nadu: 600 017.

Contact person: Name:Arul Deepak, Contact Number: +91-93842 58407,
E-Mail: aruldeepak.b@refex.co.in

FOR Sherisha Technologies Private Limited,



10/05/2025
Authorized Signatory
Name: Mr. Rajeev Vaze
Designation: Head – SCM

Acknowledgment and Acceptance by Seller/Supplier
We received, read, and understood the terms and conditions mentioned in this order. We hereby acknowledge, confirm and accept the above terms and conditions and the same shall be binding on us as “Seller”.

FOR TEAM COMPUTERS PVT LTD,

Authorized Signatory
Dated:
Place: